

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

BED BATH & BEYOND INC., *Complainant*

v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND
OOCL (EUROPE) LIMITED, *Respondents*.

DOCKET NO. 23-02

Served: August 23, 2023

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

REVISED SCHEDULING ORDER

On August 4, 2023, the parties filed a joint motion to extend briefing and other deadlines, (“Joint Motion”). On August 22, 2023, Complainant filed a motion to extend expert deadlines, which is hereby dismissed as moot.

The parties state that this proceeding involves a significant claim for reparations of over 30 million; discovery is complicated by “(i) the complexity of the matter; (ii) the need to include Complainant’s bankruptcy counsel in making decision, and other challenges presented by Complainant’s still-pending bankruptcy petition; and (iii) challenges relating to interrogatories ..., both with respect to issues concerning depositions of Respondents’ foreign personnel, and with respect to potential difficulties deposing former employees of Complainant.” Joint motion at 3-4. The parties have conferred extensively to arrive at the proposed schedule and “believe such an extension would allow for the orderly collection, review, and production of documents to be substantially completed by October 1, 2023, resulting in the following new discovery deadlines (moved approximately 90 days from the original deadline in the Scheduling Order, accounting for weekends and holidays).” Joint Motion at 6.

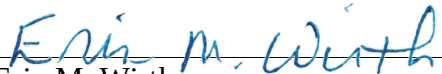
The revised discovery schedule proposed by the parties is reasonable and adopted. A deadline for a joint status report with proposed briefing schedule is added. The parties are hereby **ORDERED** to follow this revised schedule:

October 2, 2023	Substantial completion of non-privileged document production.
October 30, 2023	Complainant to identify expert witnesses, if any.
November 6, 2023	Depositions of fact witnesses may begin. Parties file joint status report with proposed briefing schedule.
November 21, 2023	Report of Complainant’s experts, if any, to be provided to Respondent.
November 30, 2023	Respondent to identify rebuttal expert witnesses, if any.
December 11, 2023	Last date to serve supplemental discovery requests.

December 21, 2023 Respondent to provide Complainant with rebuttal experts' reports,
if any.

January 2, 2024 Depositions of expert witnesses may begin.

January 12, 2024 Close of discovery.


Erin M. Wirth
Chief Administrative Law Judge